AGREEMENT FOR SALE

This Agreement for Sale ("Agreement") executed at Bangalore on this _____ day of December Two Thousand and Twenty Three. (___/12/2023).

BY AND BETWEEN

M/s. GOYAL HARIYANA ASSOCIATES, a partnership firm registered under the Partnership Act, 1932, having its registered office at No. 206, Barton Centre, No. 84, M.G. Road, Bengaluru - 560001 [PAN: AAWFG9977E], represented by its Sanjay Kumar Bajaj and is hereinafter referred to as the '**VENDOR-CUM-PROMOTER**' (which expression shall, wherever the context permits, mean and include all the Partners of the firm and the legal heirs, legal representatives, successors-in-interest, nominees, administrators, executors and permitted assigns of the last surviving partner of the firm) of the **FIRST PART.**

AND

MR. / MS. _____ , (Aadhar no. _____) son/ daughter of _____ , aged about _____ , residing at _____ , (PAN_____), hereinafter called the "**ALLOTTEE/S**" (which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include his/her heirs, executors, administrators, successors-in-interest and permitted assigns) of the **SECOND PART.**

The Vendor-cum-Promoter and Allottee shall hereinafter collectively be referred to as the "**Parties**" and individually as a "**Party**".

WHEREAS:

A. The Vendor-cum-Promoter are the absolute and lawful owner having right, title and interest over the amalgamated property bearing Katha No. 8512, Municipal No. 390, measuring 06 Acres 29.67 Guntas or 27283.08 Square Meters, situated at Gunjur, Bengaluru, more fully described in the 'Schedule A' hereto and hereinafter referred to as the '**Schedule A Property**';

B. The Vendor-cum-Promoter represents that the Schedule A Property forms part of amalgamated property bearing Katha No. 8512, Municipal No. 390 (having BBMP PID No.8512/390), measuring 07 Acres 09 Guntas or 29,238.29 Square

Meters, situated at Gunjur, Bengaluru, more fully described in the 'Schedule' hereunder '**Larger Property**'. The Larger Property is comprised of: (i) Survey No. 20, measuring 01 Acre 32 Guntas viz., Item No. 1 Property; (ii) Survey No. 21, measuring 26 Guntas viz., Item No. 2 Property; (iii) Survey No. 125/4, measuring 05 Guntas viz., Item No. 3 Property; (iv) Survey No. 125/5, measuring 05 Guntas viz., Item No. 4 Property; (v) Survey No. 126/1, measuring 01 Acre 13 Guntas viz., Item No. 5 Property; (vi) Survey No. 126/5, measuring 01 Acre 03 Guntas viz., Item No. 6 Property; (vii) Survey No. 126/6, measuring 25 Guntas viz., Item No. 7 Property; and (viii) Survey No. 127/3, measuring 01 Acre 20 Guntas viz., Item No. 8 Property, admeasuring 07 Acres 09 Guntas, all situated at Gunjur Village, Varthur Hobli, Bengaluru East Taluk, Bengaluru having acquired the same under a Sale Deed dated 13.12.2021 (Registered on 16.12.2021 as Document No. BDH-1-04608-2021-22, Book-1, stored in C.D. No. BDHD916, at the Office of the Senior Sub-Registrar, Bidarahalli, Bengaluru) executed by Mr. B.S. Narahari @ B.S.N. Hari, son of Late B.N. Satyanna and others;

C. The Vendor-cum-Promoter represents that the Item No. 1 Property and Item No. 2 Property have been converted from agricultural purpose to non-agricultural residential purpose vide Official Memorandum dated 02.03.2009 bearing No. ALN [E.V.H] SR 46/2007-08 issued by the Special Deputy Commissioner (Revenue), Bengaluru District;

D. The Vendor-cum-Promoter represents that the Item No. 3 Property, Item No. 4 Property, Item No. 5 Property, Item No. 6 Property and Item No. 7 Property have been converted from agricultural purpose to non-agricultural residential purpose vide Official Memorandum dated 02.03.2009 bearing No. ALN[E.V.H]SR 42/2007-08 issued by the Special Deputy Commissioner (Revenue), Bengaluru District, Bengaluru;

E. The Vendor-cum-Promoter represents that the Item No. 8 Property has been converted from agricultural purpose to non-agricultural residential purpose vide (i) Official Memorandum dated 02.03.2009 bearing No. ALN [EVH] SR 45/2007-08 issued by the Special Deputy Commissioner (Revenue), Bengaluru District, Bengaluru; and (ii) Official Memorandum dated 02.03.2009 bearing No. ALN [EVH]SR 663/2007-08 issued by the Special Deputy Commissioner (Revenue), Bengaluru District, Bengaluru;

F. The Vendor-cum-Promoter being interested to develop the Larger Property into a residential multi-storied apartment buildings, applied for development plan to the Bangalore Development Authority (‘**BDA’**) and the Vendor-cum-Promoter relinquished extent of: (i) 19.33 Guntas or 1,955.21 square meters for the proposed road; and (ii) 2,923.83 square meters for park and open space, out of the Larger Property under a Relinquishment Deed dated 16.03.2023 (Registered as Document No. BDA-1-04103-2022-23, Book-1, stored in C.D. No. BDAD1293, at the Office of the Additional District Registrar, Bengaluru) in favour of BDA, the Development Plan was sanctioned vide Development Plan bearing No. BDA/TPM/DLP-25/46/2022-23 dated 05.04.2023 (‘**Development Plan’**) by the BDA for developing remaining area from Larger Property.

G. Pursuant to the Development Plan, the Vendor-cum-Promoter has obtained the building sanctioned plan for the construction of the Project (defined herein) *vide* Approval No. BBMP/ Addl. Dir./JDNORTH/0033/23-24 dated 07.11.2023, issued by Bruhat Bengaluru Mahanagara Palike (“**Sanctioned Plan**”).

H. Consequent to surrender of portions of the Larger Property in favour of BDA under the above said Relinquishment Deed dated 16.03.2023 executed in favour of BDA, the remaining area in the Larger Property available for the development is about 27283.08 square meters which is equivalent to 293672.62 square feet or about **6 Acres 29.67 Guntas**, which is morefully described in the Schedule “A” hereto and hereinafter referred to as “**Schedule “A” Property**”. The Schedule ‘A’ Property is earmarked for residential purposes in terms of the zoning regulation.

I. As per the scheme for development of the Schedule ‘A’ Property formulated by the Developer, the Developer will construct a multistoried residential apartment complex consisting of **772 (Seven Hundred Seventy-Two)** residential apartments, comprising of 5 (Five) Towers, i.e. ‘A’, ‘B’, ‘C’, ‘D’, and ‘E’, and whereas Tower A to Tower E comprise of 2 common basements, and (i) Ground plus 25 (Twenty-Five) Upper Floors in Tower A; & (ii) Ground plus 24 (Twenty-Four) Upper Floors each in Towers B to E, along with a Club house, having basement, ground plus 3 (three) upper floors, the complex consists of Common Areas and the Common Amenities and Facilities thereon and the entire development of the Schedule ‘A’ Property is known as “**ORCHID LIFE**” hereinafter referred to as the (“**Project**”);

J. The Vendor-cum-Promoter has registered the Project under the provisions of the Act (*as defined hereinafter*) with the Real Estate Regulatory Authority of Karnataka, and the said Regulatory Authority has registered Project and granted Registration No _____ to the Project. The website for the Project is _____;

K. In terms of the scheme of development of the Schedule 'A' Property, allottees interested in owning an apartment would have to acquire (a) undivided share corresponding to such apartment taking into consideration the FAR achieved on the Larger Property and (b) the apartment which is being constructed by the Vendor-cum-Promoter ("**Scheme**");

L. The Allottee has been furnished with all the details pertaining to the Project and is fully aware and has understood the Disclosures (*as defined hereinafter*). The Allottee, after completing title verification of the title of the Schedule 'A' Property and having understood the Sanctioned Plan, Project Specifications (*as defined hereinafter*) under Annexure 1, the Scheme of development of the Project, has entered into this Agreement.

M. The Allottee had applied for an apartment in the Project *vide* application no. _____ dated _____ and has been allotted the apartment no._____ having carpet area of _____ square feet and _____square feet of super built up area which is inclusive of the pro rate undivided share in the Common Areas of the Project (*as defined hereinafter*) provided in terms of clause (n) of Section 2 of the Act, being _____ type of the apartment, located on _____ floor _____ in Tower no. __ of the Project known as **'ORCHID LIFE' (the "Apartment")** along with _____(nos) of car parking space be used exclusively by the Allottee or anyone claiming through the Allottee ("**Allottee Car Park**"), as permissible under the applicable law which are more particularly described in the Schedule 'B' hereto and corresponding undivided share in the Schedule 'A' Property, hereinafter referred to as the "**Undivided Share**" more particularly described in Schedule 'C' hereto. The floor plan of the Apartment and the Allottee Car Park is shown in **Annexure 2** hereto. The Apartment and the Undivided Share are hereinafter collectively referred to as the "**Schedule Property**".

N. The Vendor-cum-Promoter is fully competent to enter into this Agreement and all legal formalities with respect to the right, title and interest of the Vendor-cum-Promoter regarding the Schedule 'A' Property on which the Project is to be constructed have been completed;

O. The Vendor-cum-Promoter has made Disclosures to the Allottee in this Agreement under Clause 10.2 below;

P. The Parties have gone through all the terms and conditions set out in this Agreement and understood the mutual rights and obligations detailed herein;

Q. The Parties hereby confirm that they are signing this Agreement after taking advise and with full knowledge of all the laws, rules, regulations, notifications, etc., applicable to the Project;

R. The Parties, relying on the confirmations, representations and assurances of each other to faithfully abide by all the terms, conditions and stipulations contained in this Agreement and all applicable laws, are now entering into this Agreement on the terms and conditions appearing hereinafter;

S. In accordance with the terms and conditions set out in this Agreement as mutually agreed upon by and between the Parties, the Vendor-cum-Promoter hereby agrees to sell and the Allottee hereby agrees to purchase the Apartment on the terms and conditions contained herein;

NOW IT IS AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1. DEFINITIONS:

For the purpose of this Agreement for Sale, unless the context otherwise requires, the following capitalized terms shall have the meaning set forth below:

1.1 "**Act**" means the Real Estate (Regulation and Development) Act, 2016 (16 of 2016) and includes the Karnataka Real Estate (Regulation and Development) Rules, 2017 where the context so requires and would include all the amendments thereto from time to time;

1.2 "**Agreement**" shall mean this Agreement including the schedules and annexes hereto, as may be amended from time to time;

1.3 "**Allottee Car Park**" shall mean the exclusive car parking space/s allotted to the Allottee to be used exclusively by the Allottee so long as the Allottee owns and occupies the Apartment or by any of the occupiers of the Apartment under the

authority or agreement with the Allottee herein. The regulation for the use of Allottee Car Park shall be in terms of **Annexure 6** hereto;

1.4 **"Apartment"** shall mean the apartment no._____ having carpet area of square feet and _____square feet of super built up area which is inclusive of the pro rate undivided share in the Common Areas of the Project as provided in terms of clause (n) of Section 2 of the Act, being _____ type of the apartment , located on floor of the Tower known as "___" being in the Project known as _____ and which is more particularly described in Schedule 'C' hereto;

1.5 **"Applicable Laws"** means all laws, statutes, regulations, codes, bye-laws, ordinances, treaties, judgments, decrees, directives, rules, guidelines, orders, policies and other requirements of any Governmental Authority having jurisdiction over the Schedule 'A' Property which are in effect or as may be amended, modified, enacted or revoked from time to time hereafter and include the Act wherever the context so requires;

1.6 **"Association of Owners "** shall mean the association of apartment owners that is established by the Vendor-cum-Promoter, in respect of the Project as per the provisions of the Karnataka Apartment Ownership Act, 1972;

1.7 **"Booking Amount"** shall mean the amounts paid by the Allottee upto date of execution of this Agreement being not more than 10% of the Total Price.

1.8 **"Carpet Area**" shall mean the net useable floor area and the area covered by internal partition walls in the Apartment and shall exclude area covered by external walls, services shafts, exclusive balcony or veranda and exclusive open terrace and any other Limited Common Area.

1.9 **"Civic Amenities Site"** means an extent of **1461.91** square metres that has been reserved in terms of the existing building bye law and provisions of Section 17 (2A) of the Karnataka Town and Country Planning Act, 1961, on which the Vendor-cum-Promoter shall construct Club House for the benefit of all the owners of the apartments in the Project and the Civic Amenities Site and shall be handed over to the Association in terms of the provision of the Deed of Declaration.

1.10 "**Common Areas of the Project**" shall mean and include areas demarcated and declared as the common areas of the Project and as detailed in **Annexure 4** hereto

which are in terms of clause (n) of Section 2 of the Act. The Common Areas of the Project are subject to such reasonable, non-discriminatory rules and regulations as are prescribed by the Vendor-cum-Promoter or Association of Owners to be followed by all the owners/occupiers of the apartments in Project;

1.11 *"***Common Amenities and Facilities of the Project**" shall mean and include those amenities and facilities of the Project as detailed in **Annexure 5** hereto. The Common Amenities and Facilities of the Project are subject to such reasonable, non-discriminatory rules and regulations as are prescribed by the Vendor-cum-Promoter or the Association of Owners to be followed by all the owners/occupiers of the apartments of the Project;

1.12 "**Conveyance Deed**" **or "Sale Deed"** shall mean the deed of sale or conveyance of the Schedule Property to be executed by the Vendor-cum-Promoter in favour of the Allottee;

1.13 "**Deed of Declaration**" shall mean the deed of declaration that would be executed by the Vendor-cum-Promoter to submit the Project, the Common Areas of the Project and the Common Amenities and Facilities of the Project under the provision of the Karnataka Apartment Ownership Act, 1972;

1.14 "**Disclosures**" shall have the meaning ascribed to such term under Clause 10.2;

1.15 "**Force Majeure**" shall mean the occurrence of one or more of the following events:- (i) war, (ii) flood, (iii) drought, (iv) fire, (v) cyclone, (vi) earthquake, (vii) strike, (viii) any other calamity caused by nature and (ix) any other event declared as "force majeure" under a circular / order issued by the State or Central Government / Karnataka Real Estate Regulatory Authority;

1.16 **"Interest"** means the rate of interest payable by the Vendor-cum-Promoter or the Allottee, as the case may be in terms of this Agreement which is to be calculated at the rate of 2% over and above the highest State Bank of India Marginal Cost Lending Rate (MCLR) or such other rate as may be prescribed by the Karnataka Real Estate (Regulation and Development) Rules, 2017 from time to time;

1.17 "**Larger Property**" shall mean all that piece and parcel of residential converted lands bearing Katha No. 8512, Municipal No. 390 (having BBMP PID No. 8512/390) , Gunjur Village, Varthur Hobli, Bengaluru , measuring about 07

Acres 09 Guntas which is morefully described in the Schedule below;

1.18 "**Limited Common Area**" shall mean any exclusive garden area attached to any specified apartments, any exclusive terrace area attached to any specified apartments, that are carved out from and out of the Common Areas of the Project, and which are allotted for the exclusive use by such apartments as they would be attached to and capable of being used by these apartments and to be maintained by these apartments at their cost and not as part of the Common Area of the Project;

1.19 "**Occupancy Certificate**" means the certificate or partial occupancy certificate, or such other certificate by whatever name called, issued by the competent authority confirming completion of the Project or any of the Tower /s thereof, and pursuant thereto permitting occupation of the Project or the Tower for which such certificate is issued;

1.20 **"Payment Plan"** shall mean the plan for payment of instalments payable by Allottee under **Annexure 3** hereto, each of which individually also being Payment Plan and collectively also referred to as Payment Plan;

1.21 "**Person**" shall mean any natural person, limited or unlimited liability company, corporation, general partnership, limited liability partnership, proprietorship, trust, union, association, court, tribunal, agency, government, ministry, department, commission, self-regulatory organisation, arbitrator, board, or other entity, enterprise, authority, or business organisation and shall include any other person as defined under the Act;

1.22 "**Project**" shall have the meaning ascribed to the terms in Recital I hereto;

1.23 **"Project Account"** shall mean the account opened in ICICI Bank Ltd, Commissariat Road Branch bearing account No. 777705231100 and standing in the name of the G H A -ORCHID LIFE RERA COLLECTION ACCOUNT for the Project.

1.24 "**Rights and Obligations**" shall mean the rights set out in the Schedule D hereto and obligations set out in Schedule E hereto in the use and enjoyment of the Apartment, the Common Areas of the Project and the Common Amenities and Facilities of the Project;

1.25 "**Specifications**" or "**Project Specifications**" shall mean the specifications of construction set out in **Annexure 1** hereto or any equivalent thereto in terms of quality for the Tower in the Project;

1.26 "**Schedule A Property**" shall mean all that piece and parcel of residential converted lands being portion of the Larger Property measuring about 27283.08 square metres which is equivalent to 293672.62 square feet or about **6 Acres 29.67 Guntas**, which is morefully described in the Schedule below;

1.27 "**Schedule Property**" shall mean the Apartment and Undivided Share collectively;

1.28 "**Statutory Payments**" shall mean statutory charges including Goods and Service Tax ("GST") as applicable from time to time;

1.29 "**Super Built-Up Area**" shall mean the aggregate of (i) the Carpet Area of the Apartment, and (ii) pro rate undivided share in the Common Areas of the Project, which are in terms of clause (n) of Section 2 of the Act;

1.30 "**Total Price**" shall have the meaning ascribed to the term in Clause 3.1;

1.31 **"Tower "** shall mean the ___ tower in the Project in which the Apartment is located; and

1.32 **"Undivided Share"** shall mean an undivided share in the Larger Property corresponding to the Apartment taking into consideration the FAR consumed in construction of the Project to be finally recorded in the Sale Deed for the Schedule Property and which is more particularly described in Schedule 'B' hereto.

2. AGREEMENT FOR SALE:

Subject to the terms and conditions as detailed in this Agreement and in consideration of the Allottee joining the Scheme of development and agreeing to pay the Total Price and complying with the terms herein, the Vendor-cum-Promoter agrees to sell to the Allottee and the Allottee hereby agrees to purchase, the Schedule Property.

3. THE TOTAL PRICE FOR THE SCHEDULE PROPERTY:

3.1. The Total Price for the Schedule Property is **Rs _____/- (Rupees _____ Only)** as detailed below;

a. Basic Sale Value: The Allottee hereby agrees to pay **Rs. _____/- (Rupees _____Only**) as detailed in payment plan in **Annexure 3 (A)** hereto.

b. Other Charges Cost and Expenses: Allottee hereby agrees to pay an amount of **Rs. _____/-(Rupees _____ Only)** as detailed in payment plan in **Annexure 3 (B)** hereto.

3.2. The Total Price above includes the Booking Amount paid by the Allottee to the Vendor-cum-Promoter towards the Schedule Property;

3.3. The Total Price above includes Statutory Payment charged (consisting of tax paid or payable by the Vendor-cum-Promoter by way of Goods and Service Tax (GST), or any other similar taxes which may be levied, in connection with the construction of the Project payable by the Vendor-cum-Promoter, by whatever name called) and the same shall be payable by the Allottee under each installment of payments under the Payment Plan and on or before handing over the possession of the Apartment to the Allottee. Provided that in case there is any change / modification in the taxes and Statutory Payments, the subsequent amount payable by the Allottee to the Vendor-cum-Promoter shall be increased/reduced based on such change / modification and the Allottee further agrees that such change would amount to change in the Total Price, which the Allottee shall bear. Provided further that if any increase in the taxes after the expiry of the scheduled date of completion of the Project as per registration with the Karnataka Real Estate Regulatory Authority which shall include the extension of registration, if any, granted to the said Project by the Karnataka Real Estate Regulatory Authority as per the Act, the same shall not be charged from the Allottee;

3.4. The Vendor-cum-Promoter shall periodically intimate in writing to the Allottee, the amount payable under the Payment Plan and the Allottee shall make payment demanded by the Vendor-cum-Promoter within the time and in the manner specified therein. In addition, the Vendor-cum-Promoter shall provide to the Allottee the details of the Statutory Payments paid or demanded along with the

acts/rules/notifications together with dates from which such Statutory Payments have been imposed or become effective;

3.5. The Total Price of the Schedule Property includes recovery of price of land, construction of the Apartment as per the Specifications, the Common Areas of the Project and Common Amenities and Facilities of the Project;

3.6. The Total Price is escalation-free, save and except increases which the Allottee hereby agrees to pay, due to increase on account of development charges payable to the competent authority and/or any other increase in Statutory Payments / charges which may be levied or imposed by the competent authority from time to time. The Vendor-cum-Promoter undertakes and agrees that while raising a demand on the Allottee for increase in development charges, cost/charges imposed by the competent authorities, the Vendor-cum-Promoter shall enclose the said notification/order/rule/regulation to that effect along with the demand letter being issued to the Allottee, which shall only be applicable on subsequent payments. Provided that if there is any new imposition or increase of any development charges after the expiry of the scheduled date of completion of the Project as per registration with the Karnataka Real Estate Regulatory Authority, which shall include the extension of registration, if any, granted to the said Project by the Karnataka Real Estate Regulatory Authority, as per the Act, the same shall not be charged from the Allottee.

3.7. It is agreed that the Vendor-cum-Promoter shall not make any additions and alterations in the Sanctioned Plans and Specifications and Common Amenities and Facilities of the Project furnished by the Vendor-cum-Promoter, on the basis of which sale is effected in respect of the Apartment, without the previous written consent of the Allottee as per the provisions of the Act. Provided that the Vendor-cum-Promoter may make such minor additions or alterations as may be required by the Allottee, or such minor changes or alterations as per the provisions of the Act.

3.8. The Vendor-cum-Promoter shall confirm to the final Carpet Area that has been allotted to the Allottee after the construction of the Tower is complete and the Occupancy Certificate is granted by the competent authority, by furnishing details of the changes, if any, in the carpet area. The Total Price payable for the Carpet Area shall be recalculated upon confirmation by the Vendor-cum-Promoter. If there is any reduction in excess of 3% (three percent) of the Carpet Area, then the Vendor-cum-Promoter shall refund the excess money paid by Allottee within

sixty days with annual Interest, from the date when such an excess amount was paid by the Allottee. If there is any increase in the Carpet Area, which is not more than 3% (three percent) of the Carpet Area of the Apartment, allotted to Allottee, the Vendor-cum-Promoter may demand that from the Allottee as per the next milestone of the Payment Plan. All these monetary adjustments shall be made at the same rate per square feet of Carpet Area as agreed in clause 3.1 of this Agreement.

3.9. Subject to Clause 27.3 the Vendor-cum-Promoter agrees and acknowledges, the Allottee shall have the right to the Schedule Property as mentioned below only on the payment of the Total Price as under:

(i) The Allottee shall have exclusive ownership of the Apartment and co ownership of the Undivided Share;

(ii) The Allottee shall also have undivided proportionate share in the Common Areas of the Project. Since the share / interest of Allottee in the Common Areas of the Project is undivided and cannot be divided or separated, the Allottee shall use the Common Areas of the Project along with other occupants, maintenance staff etc., without causing any inconvenience or hindrance to them. It is clarified that the Vendor-cum-Promoter shall hand over the Common Areas of the Project to the Association of Owners after duly obtaining the Occupancy Certificate from the competent authority as provided in the Act;

(iii) That the computation of the Total Price of the Schedule Property includes recovery of price of land, construction cost of the Apartment as per the Specifications, the Common Areas of the Project and the Common Amenities and Facilities of the Project, internal development charges and external development charges, Statutory Payments;

3.10. It is made clear by the Vendor-cum-Promoter and the Allottee agrees that the Schedule Property shall be treated as a single indivisible unit for all purposes. It is agreed that the Project is an independent, self-contained Project covering the Schedule 'A' Property and is not a part of any other project or zone and shall not form a part of and/or/ linked/combined with any other project in its vicinity or otherwise except for purpose of integration of infrastructure for the benefit of the Allottee. It is clarified that Common Amenities and Facilities of the Project shall be available only for use and enjoyment of the Allottees of the Project.

3.11. The Allottee agrees not to question or challenge the Total Price agreed between the Vendor-cum-Promoter and the other Allottees in the Project.

3.12. The Vendor-cum-Promoter agrees to pay all outgoings before transferring the physical possession of the Apartment to the Allottee, which it has collected from the Allottee, for the payment of outgoings (including land cost, ground rent, municipal or other local taxes, charges for water or electricity, maintenance charges, including mortgage loan and interest on mortgages or other encumbrances and such other liabilities payable to competent authorities, banks and financial institutions, which are related to the Project). If the Vendor-cum-Promoter fails to pay all or any of the outgoings collected by it from the Allottee or any liability, mortgage loan and interest thereon before transferring the Apartment to the Allottee, the Vendor-cum-Promoter agrees to be liable, even after the transfer of the Schedule Property, to pay such outgoings and penal charges, if any, to the authority or Person to whom they are payable and be liable for the cost of any legal proceedings which may be taken therefor by such authority or Person.

3.13. The Allottee has paid a sum of **Rs._____ (Rupees only)** as Booking Amount being part payment towards the Total Price of the Schedule Property, the receipt of which the Vendor-cum-Promoter hereby acknowledges and the Allottee hereby agrees to pay the remaining of the Total Price of the Schedule Property as prescribed in the Payment Plan as may be demanded by the Vendor-cum-Promoter within the time and in the manner specified therein. Provided that if the Allottee delays in payment towards any amount which is payable; he shall be liable to pay Interest.

3.14. The Allottee shall at all times be bound by the terms and conditions of use of the Allottee Car Park as per **Annexure 6** below.

4. MODE OF PAYMENT:

4.1. Subject to the terms of the Agreement and the Vendor-cum-Promoter abiding by the construction milestones, the Allottee shall make all payments, on written demand by the Vendor-cum-Promoter, within the stipulated time as mentioned in the Payment Plan through A/c Payee cheque/demand draft/bankers cheque or online payment (as applicable) favouring the account No777705231100 and standing in the name of G H A – ORCHID LIFE RERA COLLECTION

ACCOUNT i.e. the Project Account opened with ICICI Bank Ltd, Commissariat Branch, Bangalore.
Account No.(100% Account):777705231100
Account No.(70% Account):777705241100

4.2. In case of any dishonour of cheque a sum of **Rs. 5,000 /- (Rupees Five Thousand Only)** would be debited to the Allottee's account. In cases of out station cheque or demand draft or wire transfer, the collection charges, if any, will be debited to the Allottee's account and credit for the payment made will be given on net credit of the amount of the instalment under the Payment Plan.

4.3. Tax Deduction at Source of 1% (one percent) of Total Price shall be paid / remitted by the Allottee as per the provision of Section 194 IA of the Income Tax Act, 1961. The Allottee shall issue a certificate of deduction of tax in Form 16B to the Vendor-cum-Promoter on or before the 7th of the subsequent month of deduction.

4.4. The Allottee undertakes and assures to make all the payments and all of its instalments as per the Payment Plan, in time and without any delay or default;

5. COMPLIANCE OF LAWS RELATING TO REMITTANCES:

5.1. The Allottee, if resident outside India, shall be solely responsible for complying with the necessary formalities as laid down in Foreign Exchange Management Act, 1999, Reserve Bank of India Act, 1934 and the Rules and Regulations made thereunder or any statutory amendment(s) modification(s) made thereof and all other applicable laws including that of remittance of payment acquisition/sale/transfer of immovable properties in India etc. and provide the Vendor-cum-Promoter with such permission, approvals which would enable the Vendor-cum-Promoter to fulfill its obligations under this Agreement. Any refund, transfer of security, if provided in terms of the Agreement shall be made in accordance with the provisions of Foreign Exchange Management Act, 1999 or the statutory enactments or amendments thereof and the Rules and Regulations of the Reserve Bank of India or any other applicable law. The Allottee understands and agrees that in the event of any failure on his/her part to comply with the applicable guidelines issued by the Reserve Bank of India, he/she may be liable for any action under the Foreign Exchange Management Act, 1999 or other laws as applicable, as amended from time to time.

5.2. The Vendor-cum-Promoter accepts no responsibility in regard to matters specified in clause 5.1 above. The Allottee shall keep the Vendor-cum-Promoter fully indemnified and harmless in this regard. Whenever there is any change in the residential status of the Allottee subsequent to the signing of this Agreement, it shall be the sole responsibility of the Allottee to intimate the same in writing to the Vendor-cum-Promoter immediately and comply with necessary formalities if any under the Applicable Laws. The Vendor-cum-Promoter shall not be responsible towards any third party making payment/remittances on behalf of any Allottee and such third party shall not have any right in the application/allotment of the Apartment applied for herein in any way and the Vendor-cum-Promoter shall be issuing the payment receipts in favour of the Allottee only.

6. ADJUSTMENT/APPROPRIATION OF PAYMENTS:

The Allottee authorizes the Vendor-cum-Promoter to adjust/appropriate all payments made by him/her under any head(s) of dues against lawful outstanding of the Allottee against the Schedule Property, and the Allottee undertakes not to object/demand/direct the Vendor-cum-Promoter to adjust his payments in any manner.

7. TIME IS ESSENCE:

7.1. The Vendor-cum-Promoter shall abide by the time schedule for completing the Project as disclosed in the registration of the Project with the Karnataka Real Estate Regulatory Authority.

7.2. The Allottee is fully aware and has agreed that the time of payment of the amounts in terms of the Payment Plan and each instalment is the essence of this Agreement in order to enable the timely completion of the Project by the Vendor-cum-Promoter and that the default in payments by the Allottee of the instalments set out in the Payment Plan would affect the entire Project development.

8. CONSTRUCTION OF THE PROJECT/APARTMENT:

8.1. The Allottee has seen the Sanctioned Plan of the Project, the location and layout of the Apartment and its Specifications, the Allottee Car Parking, the Common Areas of the Project and Common Amenities and Facilities of the Project and accepted the same. The Project has been approved by the competent authority, as represented by the Vendor-cum-Promoter.

8.2. The Vendor-cum-Promoter shall develop the Project in accordance with the said Sanctioned Plan, floor plans and Project Specifications. Subject to the terms in this Agreement, the Vendor-cum-Promoter undertakes to strictly abide by such plans approved by the competent authorities and shall also strictly abide by the bye-laws, Floor Area Ratio ("FAR") and density norms and provisions prescribed by the Bruhat Bengaluru Mahanagara Palike and shall not make any variation /alteration /modification in such plans, other than in the manner provided under the Act, and breach of this term by the Vendor-cum-Promoter shall constitute a material breach of the Agreement.

9. POSSESSION OF THE APARTMENT:

9.1. **Schedule for possession of the said Apartment** - The Vendor-cum-Promoter agrees and understands that subject to the Allottee paying all the amounts under this Agreement, timely delivery of possession of the Apartment to the Allottee, is the essence of the Agreement. The Vendor-cum-Promoter assures to hand over possession of the Apartment along with ready and complete Common Areas of the Project and Common Amenities and Facilities of the Project on **28-02-2030** unless there is delay or failure due to Force Majeure. If, however, the completion of the Project is delayed due to the Force Majeure conditions then the Allottee agrees that the Vendor-cum-Promoter shall be entitled to the extension of time for delivery of possession of the Apartment, provided that such Force Majeure conditions are not of a nature which make it impossible for the contract to be implemented. The Allottee agrees and confirms that, in the event it becomes impossible for the Vendor-cum-Promoter to implement the Project due to Force Majeure conditions, then this Agreement shall stand terminated and the Vendor-cum-Promoter shall refund to the Allottee the entire amount received by the Vendor-cum-Promoter from the Allottee other than Statutory Payments within 60 days from that date and against the Allottee having executed and registered a cancellation agreement for termination of this Agreement. The Vendor-cum-Promoter shall intimate the Allottee about such termination by giving thirty (30) days prior notice and on such intimation, this Agreement shall stand terminated. On refund of the money paid by the Allottee, the Allottee agrees that he/she shall not have any rights, claims etc. against the Vendor-cum-Promoter and that the Vendor-cum-Promoter shall be released and discharged from all its liabilities under this Agreement.

9.2. **Procedure for taking possession** - The Vendor-cum-Promoter, upon obtaining the Occupancy Certificate from the competent authority shall offer in writing the possession of the Apartment, to the Allottee in terms of this Agreement to be taken within two months from the date of issue of Occupancy Certificate against payment of all the amounts being paid by the Allottee in terms of the Payment Plan.

9.3. **Failure of Allottee to take possession of Apartment** - Upon receiving a written intimation from the Vendor-cum-Promoter as per clause 9.2, the Allottee shall take possession of the Apartment from the Vendor-cum-Promoter by executing necessary indemnities, undertakings and such other documentation as prescribed in this Agreement, and the Vendor-cum-Promoter shall give possession of the Apartment to the Allottee. In case the Allottee fails to take possession within the time provided in clause 9.2, such Allottee shall continue to be liable to pay maintenance charges as specified in clause 9.5 and any other taxes or Statutory Payments incurred by the Vendor-cum-Promoter.

9.4. **Possession by the Allottee** - After obtaining the Occupancy Certificate and handing over physical possession of the Apartment to the Allottee, it shall be the responsibility of the Vendor-cum-Promoter to hand over the necessary documents and plans to the Association of Owners, which is formed as per the local laws.

9.5. In the event of the Allottee failing to take possession of the Apartment, within 2 months of the Vendor-cum-Promoter having informed the Allottee of the Occupancy Certificate being received and the Allottee has paid all the amounts due under this Agreement, the Allottee shall become liable to pay for the payment towards demand/power charges from the date of possession, proportionate municipal taxes for the Common Areas of the Project , municipal taxes for the Apartment, the maintenance charges towards the Common Areas of the Project and the Common Amenities and Facilities of the Project. Further if there are any extra costs for maintenance of the interior of the Apartment and its up keep the same shall be borne by the Allottee.

9.6. It is further agreed by the Allottee, that once the Allottee takes possession of the Apartment, the Allottee shall use the same in a prudent manner and shall not in any manner undertake any of the following , which if undertaken by the Allottee,would exclude the liability of the Vendor-cum-Promoter under the provision of clause 26 below:-

9.6.1. Any structural changes;
9.6.2. Carrying out any interior works which require any structural or architectural changes from the original design attributes;
9.6.3. Demolition, dismantling, making openings, removing or re-sizing the original structural framework;
9.6.4. Putting excess or heavy load or using the Apartment other than for its intended purpose.

9.7. The Allottee agrees and undertakes that since the possession is to be taken on two months after the Occupancy Certificate is issued, the Allottee shall from expiry of the aforesaid two month period, whether possession is taken or not, become liable to:

9.7.1. pay the maintenance charges,
9.7.2. pay the Statutory Payments,
9.7.3. Pay the khata transfer fees, any other charges that are necessary for securing separate assessment for the Apartment,
9.7.4. Pay the proportionate share of all outgoings and general expenses such as insurance, municipal taxes / expenses, and cesses, electrical and water tax for the Common Areas of the Project and Common Amenities and Facilities of the Project.
9.7.5. pay all municipal and property taxes payable or arising in respect of the corresponding Carpet Area of the Apartment.

10. REPRESENTATIONS AND WARRANTIES AND DISCLOSURES OF THE VENDOR-CUM-PROMOTER:

10.1. The Vendor-cum-Promoter hereby represents and warrants to the Allottee as follows:

(i) The Vendor-cum-Promoter has absolute, clear and marketable title with respect to the Schedule 'A' Property, the requisite rights to carry out development upon the Schedule 'A' Property and absolute, actual, physical and legal possession of the Schedule 'A' Property for the Project;

(ii) The Vendor-cum-Promoter has lawful rights and requisite approvals from the competent authorities to carry out development of the Project;

(iii) There are no encumbrances upon the Schedule 'A' Property or the Project [other than as disclosed under the Disclosures];

(iv) That there are no litigations pending before any Court of law or authority with respect to the Schedule 'A' Property, Project or the Apartment;

(v) All approvals, licenses and permits issued by the competent authorities with respect to the Project, Schedule 'A' Property and Apartment are valid and subsisting and have been obtained by following due process of law. Further, the Vendor-cum-Promoter has been and shall, at all times, remain to be in compliance with all applicable laws in relation to the Project, Schedule 'A' Property, Tower and Apartment and Common Areas of the Project;

(vi) The Vendor-cum-Promoter has the right to enter into this Agreement and has not committed or omitted to perform any act or thing, whereby the right, title and interest of the Allottee created herein, may prejudicially be affected;

(vii) The Vendor-cum-Promoter has not entered into any agreement for sale and/or development agreement or any other agreement / arrangement with any person or party with respect to the Schedule 'A' Property which will, in any manner, affect the rights of Allottee under this Agreement;

(viii) The Vendor-cum-Promoter confirms that the Vendor-cum-Promoter is not restricted in any manner whatsoever from selling the Schedule Property to the Allottee in the manner contemplated in this Agreement;

(ix) At the time of execution of the Conveyance Deed, the Vendor-cum-Promoter shall handover lawful, vacant, peaceful, physical possession of the Apartment to the Allottee and the maintenance of Common Areas of the Project and the Common Amenities and Facilities of the Project to the Association of Owners as per the Act;

(x) The Schedule 'A' Property is not the subject matter of any HUF and that no part thereof is owned by any minor and/or no minor has any right, title and claim over the Schedule 'A' Property;

(xi) The Vendor-cum-Promoter has duly paid and shall continue to pay and

discharge all governmental dues, rates, charges and taxes and other monies, levies, impositions, premiums, damages and/or penalties and other outgoings, whatsoever, payable with respect to the said Project to the competent authorities till the Occupancy Certificate for the Project has been issued and possession of Apartment taken by the Allottee or two months from the date of the Occupancy Certificate, whichever is earlier;

(xii) No notice from the Government or any other local body or authority or any legislative enactment, government ordinance, order, notification (including any notice for acquisition or requisition) has been received by or served upon the Vendor-cum-Promoter in respect of the Schedule 'A' Property and/or the Project.

10.2. The Allottee acknowledges and confirms that the Vendor-cum-Promoter has fully disclosed to the Allottee and the Allottee has reviewed all such disclosures as set out below **("Disclosures")** and after having understood the implication thereof has entered into this Agreement and the Allottee has agreed to all of the Disclosures and the Allottee, expressly grants its consent and no objection to the Vendor-cum-Promoter to undertake every action as per Disclosures.

(i) That, the sale of the Undivided Share is only for enabling the Allottee to construct and own the Apartment and not for any other purpose. Accordingly, the Allottee has agreed that the quantum of undivided share to be conveyed would be finally calculated based on the FAR [*and TDR*] utilized for the Project after the removal of civic amenities land areas. The Undivided Share that would be arrived in terms hereof would be conveyed to the Allottee and form part of the Deed of Declaration.

(ii) The Common Areas of the Project and the Common Amenities and Facilities of the Project on being handed over to the Association of Owners or after one year from the date of Occupancy Certificate being issued, whichever is earlier, shall be maintained by all the allottees of the Project or the Association of Owners.

(iii) That, the Common Areas of the Project and the Common Amenities and Facilities of the Project shall be used by the Allottee in in common with owners of constructed area in the Project and on the terms and conditions

provided in the rules and regulations formulated by the Vendor-cum-Promoter and / or the Association of Owners.

(iv) That, an extent of: (i) 19.33 Guntas or 1,955.21 square meters for the proposed road; and (ii) 2,923.83 square meters for park and open space, out of the Larger Property have been relinquished under a Relinquishment Deed dated 16.03.2023 (Registered as Document No. BDA-1-04103-2022-23, Book-1, stored in C.D. No. BDAD1293, at the Office of the Additional District Registrar, Bengaluru) in favour of BDA.

(v) The Allottee is aware and acknowledges, that the Vendor-cum-Promoter shall construct Club House in the Civic Amenities Site of the Project as per the plan issued by BBMP. The said Club House and the Civic Amenities Site are for the collective benefit of the all the Owners in the Project and as such, the Vendor-cum-Promoter will handover the Civic Amenities Site and Club House constructed thereon to the Association. On such handover, of the Club House and the Civic Amenities Site**,** the Association shall be solely responsible for payment of fees, charges, taxes, etc. with the Local Authority..

(vi) The Allottee has been informed and is aware and acceptable that the Apartment does not have water connection from the BWSSB, but the Vendor-cum-Promoter has informed the Allottee and the Allottee is fully aware in case of there being any BWSSB connection being available at a later date the same shall be obtained at additional cost which additional cost the Allottee accepts to bear, and the Vendor-cum-Promoter will not be liable for any such costs.

(vii) That, the Vendor-cum-Promoter has availed financial facility for construction of the Project and in view thereof, the Vendor-cum-Promoter has deposited the documents of title, evidences, deeds and writings in respect of the Schedule 'A' Property however this mortgage shall not affect the rights and interest of the Allottee /s to the Schedule "B" Property. The bank shall provide it's no objection to the Vendor-cum-Promoter before proceeding the execution and registration of the Sale Deed.

(viii) The Vendor-cum-Promoter has informed the Allottee and the Allottee is fully aware and has agreed that the Apartment can be used only for

residential purposes and in terms of the rules and regulation formulated by the Vendor-cum-Promoter and / or the Association of Owners.

11. RIGHT OF THE VENDOR-CUM-PROMOTER TO DEVELOP THE PROJECT, THE COMMON AMENITIES AND FACILITIES OF THE PROJECT AND THE COMMON AREAS OF THE PROJECT:

11.1. The Allottee agrees that the Vendor-cum-Promoter shall have an unobstructed right without hindrance, to progress the construction of the Project and all the Common Areas of the Project and the Common Amenities and Facilities of the Project.

11.2. The Allottee agrees that the Vendor-cum-Promoter will be entitled to free and un-interrupted access, at any point of time in any part of the Schedule 'A' Property, for the development of the Project.

12. REPRESENTATIONS WARRANTIES ASSURANCES COVENANTS AND CONFIRMATION OF THE ALLOTTEE:

The Allottee acknowledges that the Vendor-cum-Promoter has entered into this Agreement, based on the representations, warranties, assurances and confirmation of the Allottee set out below:

12.1. The Allottee has the power to enter into and perform this Agreement and upon execution, this Agreement, would constitute legal, valid and binding obligations on the Allottee;

12.2. The Allottee confirms and acknowledges that the Allottee has been furnished with copies of all the title deeds relating to Schedule 'A' Property and the Sanctioned Plan, the Allottee after being satisfied with the title of the Vendor-cum-Promoter to the Schedule 'A' Property and the Vendor-cum-Promoter's right to develop Schedule 'A' Property, has entered into this Agreement;

12.3. The Allottee is aware and has also agreed that the Vendor-cum-Promoter shall be entitled to grant exclusive right to use and right to deal with any Limited Common Area. The car parking provided to the Allottees shall also be a part of the Limited Common Area. The Allottees of the Limited Common Area shall have the exclusive right thereto to the exclusion of other owners of the apartments. The Allottee confirms that before execution of this Agreement, the

Allottee has been provided with details of the Limited Common Area of the Project and is fully aware of the exclusive right of users of such Limited Common Areas of the Project. The Allottee has also been informed that the Deed of Declaration shall also provide the details of such Limited Common Area and its use and exclusivity. The maintenance of the Allottee Car Park shall be part of the maintenance charges, charged by the Vendor-cum-Promoter/ Association of Owners.

12.4. Allottee has entered into this Agreement with the full knowledge of all laws, rules, regulations, notifications applicable to the Project. That the Allottee hereby undertakes that he/she shall comply with and carry out from time to time after he/she has taken over for occupation and use the Apartment, all the requirements, requisitions, demands and repairs which are required by any authority in respect of the Apartment at his/her own cost.

12.5. That the Total Price agreed herein is based on the mutual negotiations between the Allottee and the Vendor-cum-Promoter, and the Allottee shall have no right to renegotiate on the Total Price in comparison with the other Allottees of the apartments in the Project for any reason whatsoever.

12.6. The Allottee and other owners of the apartments undertake to join the Association of Owners formed by the Vendor-cum-Promoter.

12.7. That the Allottee and the Association of Owners shall take over the maintenance of the Project in terms of Clause 21 of this Agreement.

12.8. That after Project is handed over to the Association of Owners, the Vendor-cum-Promoter shall not be responsible for any consequence or liability on account of failure, negligence, act or omission, obstruction, alteration, modification, restraint or improper use by any or all the owners, service providers or their agents with regards to the Common Amenities and Facilities of the Project as well as the fire safety equipment, fire protection systems, their supporting equipment, pollution control and other general safety equipment, related facilities and services. The Allottee with the other owners shall ensure that periodical inspections of all such Common Amenities and Facilities of the Project are done so as to ensure proper functioning thereof.

12.9. The Allottee covenants that the Allottee shall have the rights and be bound and liable to comply with the obligations set out under the Rights and Obligations.

12.10. That the Allottee shall not have any right, at any time whatsoever, to obstruct or hinder the progress of the development on the Schedule 'A' Property including the development and construction of Tower in which the Apartment is located.

12.11. That the Allottee's rights under this Agreement are confined to the Apartment and the Allottee shall not have any right in any other part of the Project and the Schedule 'A' Property.

12.12. The Allottee agrees not to alter or subscribe to the alteration of the name of the Project, "**ORCHID LIFE**", it being acknowledged that neither the Allottee nor other owners of apartments within the Project have any right to seek such change. The Vendor-cum-Promoter will be entitled to make the change in the name.

12.13. All interior related works by the Allottee can be taken up only after handing over possession of the Apartment to the Allottee by the Vendor-cum-Promoter. The Vendor-cum-Promoter does not owe any responsibility for any breakages / damage caused by the Allottee to any of the finishing works or to the structure already handed over to the Allottee's. The Vendor-cum-Promoter is not answerable to any kind of thefts, pilferages, etc during the course of the interior works by the Allottee.

12.14. The Parties agree that any default by the Allottee in complying with the payment obligations stipulated in this Agreement would constitute sufficient reason/cause for the Vendor-cum-Promoter to terminate this Agreement and in which case the provisions for termination under Clause 27.3.2 would follow immediately.

12.15. The Allottee covenants that the Allottee shall comply with all the rules and regulations pertaining to Common Areas of the Project, Common Amenities and Facilities of the Project.

12.16. The Allottee shall be solely responsible to keep the Apartment the walls, drains, pipes and other fittings in good and habitable condition in particular at his/her own cost, so as to support and protect the parts of the Tower , and to carry out any internal works or repairs as may be required by the Association of Owners.

12.17. The Allottee agrees that all the above covenants and assurances of the Allottee

shall continue up to the date of execution of the Sale Deed and shall be repeated under the Sale Deed.

13. CONVEYANCE AND DELAY IN TAKING CONVEYANCE:

13.1. The Vendor-cum-Promoter, on receipt of Total Price of the Apartment as per Clause 3.1 from the Allottee, and the Interest outstanding in terms of Clause 27.3.1 below, shall execute a Conveyance Deed and convey the absolute right, title and interest of the Schedule Property (i.e. Apartment together with corresponding Undivided Share and proportionate indivisible / undivided share in the Common Areas of the Project) in favour of the Allottee within 3 months from the date of issuance of the Occupancy Certificate. However, in case the Allottee has paid the Total Price but fails to deposit the stamp duty and / or registration charges within the period mentioned in the notice by the Vendor-cum-Promoter, the Allottee authorizes the Vendor-cum-Promoter to withhold registration of the Conveyance Deed in his/her favour till payment of stamp duty and registration charges to the Vendor-cum-Promoter is made by the Allottee. The Allottee shall not be entitled to claim conveyance of the Schedule Property until the Allottee fulfils and performs all the obligations and completes all payments under this Agreement. The Vendor-cum-Promoter shall handover a copy of the Occupancy Certificate to the Allottee /s at the time of the conveyance.

13.2. The Allottee agrees and undertakes that after the Conveyance Deed is executed, the Allottee shall not seek partition or division or separate possession of the Undivided Share that would be conveyed.

13.3. The Allottee agrees and undertakes that after the execution of the Conveyance Deed, the Allottee shall not object to the construction of the remaining part of the Project and other structures on the Project being constructed by the Vendor-cum-Promoter including apartments for sale to other Allottees.

13.4. The Allottee undertakes that the Allottee, shall come forward to take conveyance of the Schedule Property, on the Vendor-cum-Promoter having informed the Allottee in terms of clause 9.2 above. If the Allottee fails to come forward to take the conveyance, the Vendor-cum-Promoter shall not be liable for any increase in stamp duty, registration charges or up keep of the Apartment.

13.5. The Allottee shall be liable to pay the stamp duty and registration fees in terms of clause 30(h) below.

13.6. The Vendor-cum-Promoter agrees and undertakes to indemnify the Allottee in case of failure of fulfillment of any of the provisions, formalities, documentation on part of the Vendor-cum-Promoter.

14. NATURE OF RIGHT OF USAGE:

14.1. It is agreed that the Apartment shall be used only for the residential purposes.

14.2. It is agreed that the Allottee Car Park shall be used only for parking cars and the Allottee Car Park shall not be used for storage, disposal of old tyres, or as any accommodation for helpers, drivers etc.

14.3. All the Common Area of the Project and the Common Amenities and Facilities of the Project shall be for non-exclusive use and will be based on the rules and regulations of the Association of Owners and as provided herein.

14.4. Use of Basement and Service Areas: The basement(s) and service areas, if any, as located within the Project, shall be earmarked for purposes such as parking spaces and services including but not limited to electric sub-station, transformer, DG set rooms, underground water tanks, pump rooms, maintenance and service rooms, firefighting pumps and equipment's etc, watch and ward room, and other permitted uses as per Sanctioned Plan (together referred also as the Restricted Common Area) . The Allottee shall not be permitted to use the services areas and the basements which are part of the Common Areas of the Project in any manner whatsoever, other than those earmarked as parking spaces, and the same shall be reserved for use by the Association of Owners formed by the Allottees for rendering maintenance services.

15. THE KARNATAKA APARTMENT OWNERSHIP ACT, 1972 and THE KARNATAKA OWNERSHIP FLATS (REGULATION OF THEPROMOTION OF THE CONSTRUCTION, SALE, MANAGEMENT ANDTRANSFER) ACT, 1972:

The Vendor-cum-Promoter has assured the Allottees that the Project is in accordance with the provisions of the Karnataka Apartment Ownership Act, 1972 (Karnataka Act 17 of 1973) and the Karnataka Ownership Flats (Regulation of the Promotion of the Construction, Sale, Management and Transfer) Act, 1971. The Vendor-cum-Promoter showing compliance of various laws/regulations as

applicable in the State of Karnataka and its revision thereafter from time to time. It is clarified that as per the provision of the Karnataka Apartment Ownership Act, 1972, since the proportionate undivided share in Common Areas of the Project are sold along with the Apartment and cannot be separated from the Apartment to which it appertains and since pursuant to the execution of the Deed of Declaration the Common Areas of the Project are being submitted to the provision of the Karnataka Apartment Ownership Act, 1972 and the rules thereunder, and the undivided interest of the Common Areas of the Project is to be registered by the Vendor-cum-Promoter along with the Schedule Property and the undivided share in the Common Areas of the Project would be part of the super built up area of each of the apartment also the said Apartment.

16. RIGHT TO ENTER THE APARTMENT FOR REPAIRS:

The Vendor-cum-Promoter /maintenance agency /Association of Owners shall have rights of unrestricted access of all Common Areas of the Project, garages/covered/basement/ stilt/open parking and parking spaces for providing necessary maintenance services and the Allottee agrees to permit the Association of Owners and/or maintenance agency to enter into the Apartment or any part thereof and the Allottee Car Park, after due notice and during the normal working hours, unless the circumstances warrant otherwise, with a view to set right any defect.

17. RIGHT TO REBUILD.

17.1. In the event of damage or destruction of Project, where such damage or destruction occurs after the completion of Project, all Allottees in Project shall have the right to repair or rebuild Project and the apartments, subject to Applicable Law. The repair or reconstruction of the Project shall be carried out on the basis of the sanctioned plan and other approvals that may be required.

17.2. All the Allottees of Project, which is damaged or destroyed shall bear the cost of such repair or reconstruction in proportion to the size of their respective apartments and in a fair and equitable manner. The owners of the apartments based on the resolutions passed by the Association of Owners will be entitled to utilise the funds available with the Association of Owners for this purpose in accordance with the rules and regulations of the Deed of Declaration. Without prejudice to the foregoing, the Allottee agrees that the proceeds of any insurance that may be obtained by the Association of Owners for insuring the Project against

any such damage or destruction, shall be utilized only for the purpose of such repair or reconstruction.

18. ASSIGNMENT

The Allottee hereby agrees and confirms that this Agreement is not transferable / assignable to any other third party or entity except with written consent of the Vendor-cum-Promoter and on the payment of upto **Rs. 400/- (Rupees Four Hundred Only)** per square feet of super built area of the Schedule Property plus GST and such other terms as may be agreed.. However this clause would not be applicable in case of any assignment made to and between the family members i.e., father, mother, brother, sister, son, daughter, husband, wife, son in law, daughter in law, grandson and granddaughter.

19. CLUB AND MEMBERSHIP OF THE CLUB

19.1. The Allottee is fully aware that the Vendor-cum-Promoter will be providing a Club House on Civic Amenities Site as an independent structure housing some of the Common Amenities therein for the use of the Project. The said Club House will be managed by the Vendor-cum-Promoter or any operator that the Vendor-cum-Promoter may appoint, and thereafter the same would be handed over to the Association of the Owners. The said Club House will be handed over to the Association of Owners. The Association shall be responsible for the maintenance and up keep of the Club House after being handed over to the Association of Owners. The Association of Owners shall be responsible for payment of fees, charges, taxes, etc. with Local Authority, after the handover the Club House and the Civic Amenities Site. The Allottee herein will be entitled to the use of such Club House on a payment of charges as prescribed by the Vendor-cum-Promoter and after handover by the Association of Owners from time to time. The Allottee and all other Owners shall be bound by the rules and regulations of the Club House. On the Vendor-cum-Promoter handing over the maintenance to the Association in terms of the Act, the Association of Owners will be responsible to manage, maintain and operate the Club House and its facilities and pay all the municipal taxes and outgoings.

19.2. Apart from any other rules and regulations that would be formulated by the Vendor-cum-Promoter and/or the operator of the Club and/or the Association of Owners, the fundamental use of the Club House and its amenities and facilities shall be in the manner set out below:

19.2.1. In the event the Apartment is purchased by a partnership firm, then a partner or any authorised representative of the said partnership firm occupying the Apartment would be entitled to use the said Club on payment of the club membership fees.

19.2.2. In the event the Apartment is purchased by a public limited or a private limited company, any Person occupying as the authorised occupier on behalf of the said company shall be entitled to the use of the said Club on payment of the club membership fees.

19.2.3. In the event of inheritance, the Person inheriting and occupying the Apartment shall be entitled to membership of the said Club on payment of the club membership fees.

19.2.4. In the event of there being any co-owner of Apartment such co-owners occupying the Apartment will be entitled to the use of the said Club on payment of the club membership fees.

19.2.5. In any other case like tenancy, lease, license, etc., the occupier of the Apartment will be entitled to the use of the said Club on payment of the club membership fees.

20. ASSOCIATION OF OWNERS

20.1. Within a period of three months of majority of the allottees having booked their apartments in the Project, the Vendor-cum-Promoter shall form the Association of Owners in respect of the Project by executing the Deed of Declaration. The Allottee undertakes to join the Association of Owners that would be formed by the Vendor-cum-Promoter. The Project shall be governed by the rules and regulations prescribed under the Deed of Declaration and by the Association of Owners. All the present or future owners, tenants, guests and licensees or their employees, or any other person who is lawfully entitled to use the Apartment, in any manner whatsoever, shall be subject to such rules and regulations. The mere acquisition, rental, or taking on license the Apartment or the mere act of occupancy of the Apartment, shall signify that the rules are accepted and binding, ratified and will be complied with by the acquirer, tenant or licensee. The Allottee shall also observe and abide by all the Bye-laws, Rules and Regulations prescribed by the municipality or State / Central Government Authority, in regard to ownership or

enjoyment of Apartment apart from the rules and regulations of the Association of Owners. All sums assessed by the Association of Owners shall be paid by the Allottee in terms of the rules and regulations of the Association of Owners.

20.2. The Allottee along with the Conveyance Deed will also execute Form B as provided in the Karnataka Apartment Ownership Act, 1972 and such other documents as and when required to become member of the Owners Association.

21. MAINTENANCE OF THE SAID TOWER / APARTMENT / PROJECT:

21.1. The Vendor-cum-Promoter shall be responsible to maintain Common Areas of the Project and the Common Amenities and Facilities of the Project till the taking over of the maintenance of the Project by the Association of Owners or **24 months** from the date of the Occupancy Certificate, whichever is earlier. The cost of such maintenance has been included in the Total Price of the Apartment. It is clarified that after the Project is handed over to the Association of Owners, the Vendor-cum-Promoter shall not be responsible for any consequence or liability on account of failure, negligence, act or omission, obstruction, alteration, modification, restraint or improper use by any or all the owners, service providers or their agents with regards to the Project Specifications, Common Areas of the Project, Common Amenities and Facilities of the Project. The Allottee with the other owners shall ensure that periodical inspections of all such Common Amenities and Facilities of the Project are done so as to ensure proper functioning thereof.

21.2. The Allottee shall, after taking possession, be solely responsible to maintain the Apartment at his/her own cost, in good repair and condition and keep the Apartment, its walls and partitions, sewers, drains, pipe and appurtenances thereto or belonging thereto, in good and tenable condition and repair and maintain the same in a fit and proper condition and ensure that the support, shelter etc. of the Tower is not in any way damaged or jeopardized. The Allottee shall not do or suffer to be done anything in or to the Tower /Project, or the Apartment, the staircases, lifts, common passages, corridors, circulation areas, atrium or the compound which may be in violation of any laws or rules of any authority or change or alter or make additions to the Apartment.

21.3. The Allottee will be required to pay maintenance charges for the Common Areas of the Project and Common Amenities and Facilities of the Project in the manner as provided in Clause 31 below.

21.4. The Allottee further undertakes, assures and guarantees that he/she would not put any sign-board / name-plate, neon light, publicity material or advertisement material etc. on the face / facade of the Tower or anywhere on the exterior of the Project, buildings therein or Common Areas of the Project. The Allottees shall also not change the name of the Project, the colour scheme of the outer walls or painting of the exterior side of the windows or carry out any change in the exterior elevation or design. Further the Allottee shall not store any hazardous or combustible goods in the Apartment or place any heavy material in the common passages or staircase of the Tower or other buildings in the Project, if any. The Allottee shall also not remove any wall, including the outer and load bearing wall of the Apartment.

21.5. The Allottee shall plan and distribute its electrical load in conformity with the electrical systems installed by the Vendor-cum-Promoter and thereafter the Association of Owners and/or maintenance agency appointed by Association of Owners. The Allottee shall be responsible for any loss or damages arising out of breach of any of the aforesaid conditions.

22. ADDITIONAL CONSTRUCTIONS:

The Vendor-cum-Promoter undertakes that it has no right to make additions or to put up additional structure(s) anywhere in the Project after the building plan, layout plan, Sanctioned Plan and Project Specifications, Common Amenities and Facilities of the Project has been approved by the competent authority(ies) and disclosed, except for as provided in the Act.

23. VENDOR-CUM-PROMOTER SHALL NOT MORTGAGE OR CREATE A CHARGE:

After the Vendor-cum-Promoter executes this Agreement, the Vendor-cum-Promoter shall not mortgage or create a charge on the Apartment and if any such mortgage or charge is made or created after the execution of this Agreement, then notwithstanding anything contained in any other law for the time being in force, such mortgage or charge shall not affect the right and interest of the Allottee who has agreed to purchase the Apartment.

24. BINDING EFFECT:

This Agreement shall be binding on the Parties, firstly on the Allottee signing and delivering this Agreement with all the schedules along with the payments due as stipulated in the Payment Plan being received from the Allottee.

25. PROTECTION OF INTELLECTUAL PROPERTY RIGHTS

The Allottee is fully aware and acknowledges, understands and agrees that the logo, the mark and all Intellectual Property Rights of the Vendor-cum-Promoter is the sole and exclusive property of the Vendor-cum-Promoter and the Vendor-cum-Promoter has all the rights thereto and any use of the same without any limitation whatsoever and in any shape or form or in any manner whatsoever by the Allottee or any other person, is expressly prohibited and only the Vendor-cum-Promoter is entitled to the same and to use the same in any form, manner, for any products, and to exploit the same. On violation of this clause by the Allottee in any manner, the Vendor-cum-Promoter, apart from seeking injunctive relief will also be entitled to be compensated fully including all cost, charges and expenses incurred by the Vendor-cum-Promoter in protecting its intellectual property rights.

26. DEFECT LIABILITY PERIOD:

In the event any Structural Defect in relation to the Project is brought to the notice of the Vendor-cum-Promoter by the Allottee in writing within the period of 5 (five) years from the date of the Occupancy Certificate, the Vendor-cum-Promoter shall attend to the same within thirty (30) days of such notice or such other time period as may be reasonably required to rectify the Structural Defect at its cost. In the event of Promoter's failure to rectify such defects within such time, the aggrieved Allottee shall be entitled to receive/recover appropriate compensation in the manner as provided under the Act. Provided always that, if any Structural Defect or damage is found to have been caused due to any act of omission or commission of the Allottee or any other Allottee/s or due to the negligence of the Allottee or any other Allottee /s or his/her/their agents or Structural Defects caused or attributable to the Allottee including by carrying out structural or architectural changes from the original design attributes, demolition, dismantling, making openings, removing or re-sizing the original structural framework, putting excess or heavy load or using the Schedule 'C' Property other than for its intended purpose or such other reasons attributable to the Allottee,

then neither the Vendor-cum-Promoter shall be liable for any complained Structural Defect. The above liability of the Promoter shall be restricted only to rectify/repair the above defects and any consequential damages including normal wear and tear will not be covered under this Agreement. Structural defects shall not include plastering hairline crack. Third party warranty on products shall be governed by the terms and conditions provided by the manufacturer of the respective products.

27. EVENTS OF DEFAULTS AND CONSEQUENCES:

27.1. Subject to there being no Force Majeure event, the Vendor-cum-Promoter shall be considered under a condition of default, in the following events:

27.1.1. Vendor-cum-Promoter fails to give possession of the Apartment in the Tower completed in terms of the Specifications under this Agreement with Occupancy Certificate (i.e. the ready to move in possession, but shall exclude any specific modifications or upgrades of interiors of the Apartment requested by the Allottee) to the Allottee within the time period specified in clause 9.1 or fails to complete the Project within the stipulated time disclosed at the time of registration of the Project with the Karnataka Real Estate Regulatory Authority.

27.1.2. Discontinuance of the Vendor-cum-Promoter's business as a developer on account of suspension or revocation of his registration under the provisions of the Act or the Rules made thereunder.

27.2. In case of default by Vendor-cum-Promoter under the conditions listed above, Allottee is entitled to the following:

27.2.1. Stop making further payments to Vendor-cum-Promoter as demanded by the Vendor-cum-Promoter. If the Allottee stops making payments, the Vendor-cum-Promoter shall correct the situation by completing the construction milestones and only thereafter the Allottee will be required to make the next payment without any Interest; or

27.2.2. The Allottee shall have the option of terminating the Agreement in which case the Vendor-cum-Promoter shall be liable to refund the entire money paid by the Allottee under this Agreement along with Interest,

within sixty (60) days of receiving the termination notice and against the Allottee executing and registering a cancellation agreement for termination of this Agreement:

Provided that where an Allottee does not intend to withdraw from the Project and terminate the Agreement, it is agreed that the Allottee shall be paid by the Vendor-cum-Promoter, Interest for every month of delay till the handing over of the possession of the Apartment. It is further agreed between the Allottee that the outstanding Interest shall be paid by the Vendor-cum-Promoter to the Allottee. Notwithstanding, what is stated herein the Allottee will be entitled to terminate this Agreement at any time after the Vendor-cum-Promoter being in default by giving 30 days' notice. On such termination, Vendor-cum-Promoter shall be liable to refund the entire money paid by the Allottee under this Agreement along with Interest, within sixty (60) days of the termination and against the Allottee executing and registering a cancellation agreement for termination of this Agreement. The Parties have agreed that the Allottee not terminating the Agreement after default of the Vendor-cum-Promoter in terms of clause 27.2.2 above, will not be construed as waiver on the part of the Allottee to terminate this Agreement at any time thereafter if the default of the Vendor-cum-Promoter continues.

27.3. The Allottee shall be in default of this Agreement, on the occurrence of the following events:

27.3.1. In case the Allottee fails to make payments of any installment the Vendor-cum-Promoter shall give two consecutive notices as under :

27.3.1.1. Vendor-cum-Promoter will notify the Allottee of such default and demand payment of that installment with Interest thereon to be paid within 15 days.

27.3.1.2. In case the Allottee fails to make the payment of the installment with Interest thereof as stated above within the said 15 days the Vendor-cum-Promoter will give another 15 days to pay the installment due with Interest thereon from the due date till the date of actual payment**;**

27.3.2. In case the Allottee despite the two notices, fails to pay the installments

with Interest thereon, the Vendor-cum-Promoter by giving 30 days' notice, may cancel this Agreement and this Agreement shall thereupon stand terminated and the Vendor-cum-Promoter will be entitled to deal with the Schedule Property. The Vendor-cum-Promoter will refund the money paid to it by the Allottee after deducting the Booking Amount, the Interest due on outstanding installments and Statutory Payments within sixty (60) days of termination and against the Allottee having executed and registered a cancellation agreement for termination of this Agreement. Provided that the Vendor-cum-Promoter shall intimate the Allottee about such termination at least thirty days prior to such termination.

Provided that where the Vendor-cum-Promoter does not terminate this Agreement, the Allottee shall continue to pay the Interest on the outstanding installment notified from time to time, for every month of delay till the handing over of the possession of the Apartment. If despite the Vendor-cum-Promoter having granted time in terms of this clause and the Allottee failing to make the payment of all the installments in terms of the Payment Plan and Interest due before taking possession, the Vendor-cum-Promoter will be entitled to terminate this Agreement and refund the amounts received after deducting the Booking Amounts**,** the Interest due on outstanding installments and Statutory Payments, within sixty (60) days of such termination. Notwithstanding, what is stated herein the Vendor-cum-Promoter will be entitled to terminate this Agreement at any time after the Allottee being in default by giving 30 days' notice. On such termination the Vendor-cum-Promoter will refund the amounts received after deducting the Booking Amounts**,** the Interest due on outstanding installments and Statutory Payments within sixty (60) days of termination. The Parties have agreed that the Vendor-cum-Promoter not terminating the Agreement after the Allottee default in terms of clause 27.3.2 above will not be construed as waiver on the part of the Vendor-cum-Promoter to terminate this Agreement at any time thereafter.

27.4. If the Allottee has taken housing loan facility from any financial institution or bank, then in that event based on the terms of such loan, the amounts that the Allottee would be entitled to in terms of Clauses 27.2.2 and 27.3.2 above, would be handed over to the financial institution or the bank against (a) the bank / financial institution forthwith issuing a "no dues certificate" in favour of the

Vendor-cum-Promoter, (b) hand over the original of this Agreement that may be deposited with the financial institution or bank by the Allottee and (c) the Allottee having executed and registered a cancellation agreement for termination of this Agreement.

27.5. On issuance of any termination notice under this Agreement, the Vendor-cum-Promoter shall be entitled to deal with the Schedule Property and be released and discharged from all its obligations and liabilities under this Agreement.

28. CANCELLATION BY ALLOTTEE:-

28.1. The Allottee shall have the right to cancel/withdraw his allotment in the Project as provided in the Act:

28.2. Where the Allottee proposes to cancel/withdraw from the Project without any fault of the Vendor-cum-Promoter, the Vendor-cum-Promoter herein is entitled to forfeit the Booking Amount paid for the allotment. The balance amount of money paid by the Allottee excluding Statutory Payments shall be returned by the Vendor-cum-Promoter to the Allottee within 60 days of such cancellation against the Allottee having executed and registered a cancellation agreement for termination of this Agreement.

28.3. The Vendor-cum-Promoter, shall compensate the Allottee in case of any loss caused to him due to defective title of the land, on which the Project is being developed or has been developed, in the manner as provided under the Act and the claim for Interest and compensation under this provision shall not be barred by limitation provided under any law for the time being in force.

29. NOTICES

Any notice and other communications provided for in this Agreement shall be in writing and shall be first transmitted by facsimile/electronic transmission and then confirmed by internationally recognised courier service, in the manner as elected by the Party giving such notice to the following addresses:

(a) In the case of notices and other communications to the Vendor-cum-Promoter:

Address	**:**	
Attention	**:**	
Telephone	**:**	
Email	**:**	

(b) In the case of notices and other communications to the Allottee /s:

Address	**:**	
Attention	**:**	
Telephone	**:**	
Email	**:**	

(c) All notices shall be deemed to have been validly given on **(i)** the business date immediately after the date of transmission with confirmed answer back, if transmitted by facsimile/electronic transmission, or **(ii)** the business date of receipt, if transmitted by courier or registered mail.

Any Party may, from time to time, change its address provided for in this Agreement by giving to the other Party not less than 15 days prior written notice. If no such change is notified, the service on the address given in the title of this Agreement shall be address to which the notices are to be issued and such notice being issued shall be considered as being issued to the correct address, irrespective of the Party having changed its address without notifying.

30. MISCELLANEOUS

(a) Reservation of rights

No forbearance, indulgence or relaxation or inaction by the Parties at any time to require performance of any of the provisions of this Agreement shall in any way affect, diminish or prejudice the right of the Parties to require performance of that provision. Any waiver or acquiescence by the Parties of any breach of any of the provisions of this Agreement shall not be construed as a waiver or acquiescence of any

right under or arising out of this Agreement or of the subsequent breach, or acquiescence to or recognition of rights other than as expressly stipulated in this Agreement.

(b) **Provisions of this Agreement Applicable on Allottee or Subsequent Allottees**

It is clearly understood and so agreed by and between the Parties hereto that all the provisions contained in this Agreement and the obligations arising hereunder in respect of the Schedule Property shall equally be applicable to and enforceable against and by any subsequent allottees of the Apartment, pursuant to the assignment that would be permitted in terms of clause 18 above for all intents and purposes.

(c) **Severability**

If any provision of this Agreement shall be determined to be void or unenforceable under the Act or the Rules and Regulations made thereunder or under other Applicable Laws, such provisions of the Agreement shall be deemed amended or deleted in so far as reasonably inconsistent with the purpose of this Agreement and to the extent necessary to conform to Act or the Rules and Regulations made thereunder or the Applicable Law, as the case may be, and the remaining provisions of this Agreement shall remain valid and enforceable as applicable at the time of execution of this Agreement.

(d) **Amendment**

No modification or amendment to this Agreement and no waiver of any of the terms or conditions hereto or any rights arising here from shall be valid or binding unless made in writing and duly executed by both Parties.

(e) **Waiver**

The Vendor-cum-Promoter may, at its sole option and discretion, without prejudice to its rights as set out in this Agreement, waive any of the breach by the Allottee in not making payments as per the Payment Plan including waiving the payment of Interest for delayed payment.

Any such waiver of either a breach or payment of Interest shall not be construed to be a precedent and /or binding on the Vendor-cum-Promoter to exercise such discretion in the case of other Allottee/s. Any one of the breach being waived under this clause shall not be construed to be a waiver of the Vendor-cum-Promoter's right to terminate this Agreement for any subsequent breach of the Allottee /s in payment of the subsequent instalment under the Payment Plan

(f) **Counterparts**

This Agreement may be entered into in any number of counterparts, all of which taken together shall constitute one and the same instrument. The Parties will be signing such counterpart.

(g) **Entirety:**

This Agreement, along with its recitals, schedules, constitutes the entire Agreement between the Parties with respect to the subject matter hereof and supersedes any and all understandings, any other agreements, application for allotment, allotment letter, correspondences, arrangements whether written or oral, if any, between the Parties in regard to the Schedule Property.

(h) **Stamp Duty, Registration Charges, etc.**

(i) The stamp duty payable on this Agreement, shall be borne by the Allottee exclusively. The Vendor-cum-Promoter shall have no liability in this respect thereto

(ii) The stamp duty and registration fee or any demands for deficit prevailing on the date of registration of this Agreement and the Conveyance Deed, shall be borne by the Allottee exclusively. The Vendor-cum-Promoter shall have no liability in respect thereto. The Allottee shall be solely responsible and liable for compliance of the provisions of Karnataka Stamp Act, 1957, including any actions taken or deficiencies / penalties imposed by the appropriate authority.

(iii) Each of the Parties shall bear their respective legal costs associated

with the preparation, finalisation, completion and execution of this Agreement and the Conveyance Deed.

31. METHOD OF CALCULATION OF PROPORTIONATE SHARE WHEREVER REFERRED TO IN THE AGREEMENT:

Wherever in this Agreement it is stipulated that the Allottee has to make any payments, towards any Common Areas of the Project and or the Common Amenities and Facilities of the Project or any other cost or capex for such Common Areas of the Project and or the Common Amenities and Facilities of the Project, the same shall be in the proportion of the Carpet Area of the Apartment to the total carpet area of all the apartments in the Project.

32. FURTHER ASSURANCES:

Both Parties agree that they shall execute, acknowledge and deliver to the other such instruments and take such other actions, in addition to the instruments and actions specifically provided for herein, as may be reasonably required in order to effectuate the provisions of this Agreement or of any transaction contemplated herein or to confirm or perfect any right to be created or transferred hereunder or pursuant to any such transaction.

33. DISPUTE RESOLUTION.-

All or any disputes arising out or touching upon or in relation to the terms and conditions of this Agreement, including the interpretation and validity of the terms thereof and the respective rights and obligations of the Parties, shall be settled amicably by mutual discussion, failing which the same shall be settled through the adjudicating officer appointed under the Act.

34. GOVERNING LAW AND JURISDICTION:

34.1. The provisions of this Agreement shall, in all respects, be governed by, and construed in accordance with the laws of India.

34.2. The Parties agree that the courts in Bangalore shall have jurisdiction.

34.3. The Karnataka Real Estate Regulatory Authority or the Appellate Tribunal under

the Rules framed pursuant to the Act by the Government of Karnataka would have jurisdiction for the matters arising under this Agreement and falling under the Act.

LARGER PROPERTY
(Description of the entire property)

All that piece and parcel of immovable property bearing Katha No. 8512, Municipal No. 390 (having BBMP PID No. 8512/390), measuring **07 Acres 09 Guntas** or 29,238.29 square meters, situated at Gunjur Village, Varthur Hobli, Bengaluru and bounded as follows:

East	Remaining portion of property bearing Survey No. 127/3 and Property bearing Survey Nos. 19, 23 & 18;
West	Property bearing Survey Nos. 125/3, 126/2, 127/2 & 129/3;
North	Existing Road; and
South	Property bearing Survey Nos. 22 & 126/4.

SCHEDULE - A
(Description of the Schedule 'A' Property)

All that piece and parcel of the composite land carved out of the Larger Property presently bearing portion of Municipal No. 390, measuring **06 Acres 29.67 Guntas** or 27283.08 Square Meters, situated at Gunjur, Bengaluru.

SCHEDULE - B
(Description of Undivided Share)

An undivided _____ (equivalent to _____ square feet) share from and out of the Schedule 'A' Property.

SCHEDULE - C

(Description of Apartment)

A ____ Bedroom Apartment bearing No._____ on the _____ Floor in "_____" Tower of the Apartment Complex known as "**ORCHID LIFE**" on the Schedule 'A' Property, having a **Super built-up area of _____- Square Feet and Carpet Area of _____ square feet** (which is inclusive of the floors, ceiling

and walls between the apartments and proportionate share in all common areas) along with ____ **nos** car parking space/s .

SCHEDULE 'D'

RIGHTS OF THE ALLOTTEE

1) The Allottee shall be entitled to the use and occupation of Apartment, subject to the terms and conditions contained in this Agreement and the maintenance agreement between the Association of Owners and the service provider for maintenance of the Common Areas of the Project, Project Specifications, Common Amenities and Facilities of the Project ("**Association Agreement**") ;

2) The Allottee and all persons authorised by the Allottee (in common with all other persons entitled, permitted or authorised to a similar right) shall have the right at all times and for all purposes, to use the Common Areas of the Project;

3) The right to subjacent, lateral, vertical and horizontal support for the Apartment from the other parts of the Tower ;

4) The right to free and uninterrupted passage of water, gas, electricity, sewerage etc., from and to the Apartment through the pipes, wires, sewer lines, drain and water courses, cables which are or may at any time hereafter be, in, under or passing through the Tower and the Schedule 'A' Property or any part thereof;

5) The right to lay cables or wires for radio, television, telephone and such other installations through designated conduits, ducts and shafts, in any part of the Tower , however, recognising and reciprocating such rights of the other owners;

6) The right of entry and passage for the Allottee and agents or workmen of the Allottee to other parts of the Tower at all reasonable times after notice to enter into and upon other parts of the Tower for the purpose of repairs or maintenance of the Apartment or for repairing, cleaning, maintaining or renewing the water tanks, sewer, drains and water courses, cables, pipes and wires causing as little disturbance as possible to the other owners and making good any damage caused;

SCHEDULE 'E'

OBLIGATIONS OF THE ALLOTTEE

1) The Allottee shall give to the other apartment owners in the Tower , the necessary vertical, horizontal and lateral support and reciprocate and recognise the rights of the other owners in the Tower ;

2) The Allottee shall comply with all the rules and regulations pertaining to electrical installations, fire safety equipment and services, pollution control and general safety equipment and services as may be provided in the Project in which the Apartment is located and also in the Common Areas of the Project;

3) The Allottee shall not at any time, carry on or suffer to be carried on in the Apartment or any part thereof in the Project, any noisy, offensive or dangerous trade or pursuit which may be or become in any way a nuisance, annoyance or danger to the other owners of the other apartments or which may tend to depreciate the value of the Project or any part thereof;

4) Except for leasing or rental permitted under this Schedule, the Allottee shall use the Apartment only for private residential purposes and shall not be put to use for any kind of commercial or semi commercial use or serviced apartment;

5) The Allottee understands and agrees that any time after the sale of the Undivided Share and the handover of the Apartment, if the Allottee leases or sells it to any third party, the Allottee has to intimate the same in advance with the details of the transferee / buyer / lessee and ensure that the entire sum of money, if any due to the Association of Owners, is cleared before the said lease or transfer. Further, it shall be the obligation of the Allottee to bind the transferee to the obligations of the Allottee under this Agreement and the Conveyance Deed and the Association of Owners. Such new purchaser shall join the Association of Owners;

6) The Allottee shall not be permitted to use the service areas and the basements in any manner whatsoever, other than those earmarked for Allottee Car Park, and

the same shall be reserved for the use by the Association of Owners for rendering maintenance service;

7) The Allottee will use all sewers, drains and water lines now in or upon or hereafter to be erected and installed in the Tower in common with the other apartments and to permit free passage of water, sanitary, electrical lines, through and along the same or any of them and to share with the other apartments;

8) The Allottee shall duly and punctually pay the proportionate share of insurance charges, cost of maintenance and management, all out-goings and annual maintenance charges and general expenses of Project Specifications, Common Amenities and Facilities of the Project and the Common Areas of the Project. The liability for such share shall commence from the date of the Allottee taking possession of the Apartment or date of expiry of two months from the date of Occupancy Certificate, whichever is earlier;

9) That the Allottee shall also become liable to pay proportionate share of municipal taxes, rates and cesses, electrical, domestic and non-domestic water charges, insurance charges, cost of maintenance, management of Project Specifications, Common Amenities and Facilities of the Project and the Common Areas of the Project and all other charges for the Common Areas of the Project, from the date of the Allottee taking possession of the Apartment or date of expiry of two months from the date of Occupancy Certificate, whichever is earlier;

10) The Allottee shall not put up any hoarding, name plates, signboards, graffiti, etc., in place other than that demarcated and allotted by the Vendor-cum-Promoter;

11) The Allottee shall carry out their interior works in the Apartment only during 9 AM to 1 PM and thereafter 4 PM to 6 PM on all working days and there will be no work allowed during any public holidays and Sundays;

12) The Allottee agrees to pay all the Statutory Payments pertaining to the Apartment from the date of the Allottee taking possession of the Apartment or the date of expiry of two months from the date of Occupancy Certificate, whichever is earlier;

13) Any new Statutory Payments by the Central and the State Government which are not levied at the moment but after the Apartment is handed over, shall be borne and paid by the Allottee;

14) The Allottee shall plan and distribute its electrical load in conformity with the electrical systems installed by the Vendor-cum-Promoter and thereafter the Association of Owners and / or maintenance agency appointed by the Association of Owners. The Allottee shall be responsible for any loss or damages arising out of breach of any of the aforesaid conditions;

15) That if any development and / or betterment charges or other levies are charged, levied or sought to be recovered by the BBMP or any other authority in respect of the Schedule Property, the same shall be borne and paid by the Allottee;

16) The Allottee covenants that the Allottee shall comply with all the rules and regulations pertaining to the Common Amenities and Facilities of the Project;

17) The Allottee shall ensure that the Association of Owners is at all times compliant with the Association Agreement. That the Allottee with the other owners of the apartments, through the Association of Owners shall at all times keep the annual maintenance contracts with regards to all the Common Amenities and Facilities of the Project and the Common Areas of the Project valid, and shall pay the amounts of annual maintenance contract and Association Agreement as and when demanded by the maintenance agency appointed. The Allottee is fully aware that non-payments towards the annual maintenance contracts will adversely affect all the equipment installed by the Vendor-cum-Promoter in the Project and non-payment of maintenance charges shall also affect such maintenance of the general and safety equipment installed and shall ensure periodical renewal of the same and that same is kept in current and also maintain necessary certificates, licenses, permits, permissions, insurance renewal thereof;

18) The Allottee agrees that the Allottee shall pay the charges as per the Association Agreement regularly without any default. In the event of any default in payment by the Allottee, the maintenance agency will be entitled to withdraw all or any of the services rendered under the Association Agreement. The Allottee is liable to pay GST levied by the State or the Central Government on such charges as may be applicable. The Allottee shall contribute to the sinking fund for any capital expenditure as provided in the Association Agreement;

19) The Allottee shall ensure that no rubbish / refuse shall be thrown out of the Apartment into the Common Areas of the Project and the passages;

20) The Allottee will not dry clothes outside on the balconies of the Apartment;

21) That the Allottee shall not install any additional tanks in the Apartment;

22) That the Allottee shall not in any manner obstruct or cause obstruction to any of the entries or exits of the Project or obstruct any open area meant to be retained as open space or obstruct free movement of vehicles including fire tenders, and such other vehicles required to ensure safety and statutory compliance;

23) The Allottee shall keep the Apartment, walls, drains, pipes and other fittings in good and habitable condition and in particular so as to support and protect the parts of the Tower , and to carry out any internal works or repairs as may be required by the Association of Owners;

24) The Allottee shall neither make any additions or alterations or cause damage to any portion of the Tower or the Apartment nor change the location of the toilets, kitchens or plumbing lines, outside colour scheme, outside elevation/ façade / décor of the Tower . The Allottee at no point of time shall enclose any of the balconies of bedroom, living room/kitchen with glass or grill or otherwise. The air-conditioner outdoor units shall be placed only at the areas designated by the Vendor-cum-Promoter.

ANNEXURE 1

(Specifications or Project Specifications)

Wall Finishing
• Internal walls & Ceiling finished with Tractor Emulsion.
• External walls painted with weather coat/weather shield paint.

Flooring
• Vitrified tiles for living/dining/kitchen/bedrooms & utility area.
• Ceramic tiles for Living balcony & Master balcony.
• Lobbies with rustic finish/vitrified tiles.

Doors & Windows
• Main doors with wood finish frames and wood finish flush doors.
• Other internal doors with wood finish frames and moulded panel doors.

Windows

• UPVC/Aluminum frames and sliding shutters for all sliding doors & windows with mosquito mesh provision.

Kitchen
• Counter : Provision for modular kitchen (No granite counter will be provided)

Utility
• Granite countertop with single bowl sink & chrome plated tap.
• Washing Machine point provision in utility area.
• Cladding with ceramic tiles 2 feet above the kitchen platform.

Toilets
• Ceramic tiles for flooring and dado up to 7ft height.
• Granite counter wash basin in the master toilet and wall mounted wash basins in other toilets.
• EWC's and chrome plated fittings with shower mixer in all toilets.
• Grid false ceiling.
• Provision for exhaust fans and geysers.

Electrical
• 2 & 3BHK+2T: 4 KW BESCOM power single phase supply & 0.75 KW DG back up.
• 3 BHK: 5 KW BESCOM power single phase supply & 1 KW DG back up.
• 100% DG back up for pumps, lifts, and common areas.
• Video door phone provision

Water supply
• CPVC line for water supply.
• UPVC/PVC lines for soil, drainage, and external lines.
• Sewage treatment plant.
• Rainwater harvesting system.

Lifts
• 8 & 13 passengers lift in each tower.

Security system
• CCTV coverage in peripheral areas.
• Security cabin at entrance & exit.

ANNEXURE 2
(Floor plan of Apartment)

ANNEXURE 3

A:

(Payment Plan)

Booking Amount	5%
Agreement execution within 7 days from the booking date	5%
On completion of Excavation work	10%
On completion of Foundation	10%
On completion of 1st Floor Slab	5%
On completion of 4th Floor Slab	5%
On completion of 6th Floor Slab	5%
On completion of 8th Floor Slab	5%
On completion of 10th Floor Slab	5%
On completion of 12th Floor Slab	10%
On completion of 14 Floor Slab	5%
On completion of 16th Floor Slab	5%
On completion of 18th Floor Slab	5%
On completion of 20th Floor Slab	5%
On completion of 22th Floor Slab	5%
On completion of 24th Floor Slab	5%
On Possession/Registration whichever is earlier	5%
TOTAL	100%

B. OTHER COSTS, CHARGES AND EXPENCES:

Maintenance Charges for 24 months @ Rs.6/- per sft per month	
Refundable Corpus Fund	
Sub Total (B)	
Gross Apartment Value (A) + (B)	

ANNEXURE 4
(Details of Common Areas of the Project)

1. Stairs Cases (Mandatory)
2. Lifts
3. Corridor/Lobbies
4. Fire Escapes
5. Common entrance and exit for the tower/common portico/foyer/verandah
6. Basement
7. Terrace
8. Outer Wall

ANNEXURE 5
(Details of Common Amenities and Facilities of the Project)

I) Pet park
2) Tennis Court
3) Cricket pitch
4) Children's play arca
5) Celebration Lawn
6) Swimming pool with deck

7) Amphitheatre
8) Lilly pond
9) Pickle ball Court
10) Half basket ball court
11) Multi purpose Court-
12) Social tree Court.

ANNEXURE 6

TERMS AND CONDITIONS OF USE OF ALLOTTEE CAR PARKS

The Allottee shall at all times be bound by the terms and conditions of use of the Allottee Car Park as listed under:

1. The Allottee will at all times act responsibly and safely in the use of the Allottee Car Park and comply with all directions given by the Vendor-cum-Promoter / Association of Owners in the day to day use of the Allottee Car Park.

2. The Allottee will use the Allottee Car Park for the sole purpose of parking a motor vehicle in his / her / its capacity as the owner of the Apartment and for no other purpose whatsoever.

3. The Allottee will not bring into the Allottee Car Park at any time any petroleum or other inflammable volatile oil or substance other than petroleum in the fuel tank of any motor vehicle.

4. The Allottee will not cause any nuisance, damage, obstruction, annoyance or inconvenience to the car parking spaces of other apartment owners.

5. The Allottee will not bring into or on the Allottee Car Park or allow to remain there any un-road worthy or excessively noisy motor vehicle or any motor vehicle incapable of being accommodated within a standard passenger car parking space or within the clear height of a level in the Allottee Car Park.

6. Parking and use of the Allottee Car Park is solely at the Allottee's risk. The Allottee will have no claim against the Vendor-cum-Promoter or its contractors

or otherwise or against any one whom they represent or any of the employees or agents of the Vendor-cum-Promoter or its contractors for any loss or damage to property or personal injury or loss of life directly or indirectly related to the Allottee's use of the Allottee Car Park. Furthermore, the Allottee will indemnify the Vendor-cum-Promoter against any such claims and the costs thereof.

7. The Allottee will permit the staff managing the car parks in the Project to move his / her / its car in the event of emergencies or in other appropriate circumstances, on the understanding that they have no duty to do so.

8. The Allottee will only use the Allottee Car Park so allocated and will recognise the Vendor-cum-Promoter's right to re-allocate spaces as required.

9. This car parking arrangement is only a right of use granted to the Allottee, giving the Allottee no property interest in the Allottee Car Park.

10. The Allottee's vehicle/s shall at all times comply with all road markings, signs and the directions of authorised persons.

11. Vehicle/s of the Allottee shall be parked within the lines designating the Allottee Car Park/s and shall at all times be parked in such a way that no obstruction is caused to the car parks access lanes.

12. The Allottee must:
    (a) observe and conform to all the rules and regulations relating to the use of the car parks made and issued by the Vendor-cum-Promoter / Association of Owners from time to time;

    (b) advise the Vendor-cum-Promoter / Association of Owners regarding the registration number and name of the driver of any vehicle which may park in the car parks, if required by the Vendor-cum-Promoter / Association of Owners, and shall notify the Vendor-cum-Promoter / Association of Owners in the event of any change in respect of the same.

13. The Vendor-cum-Promoter or its contractors / Association of Owners may access any part of the Allottee Car Park at any time for the purpose of inspecting it, doing any necessary repairs or for any other specified purpose.

14. Alteration of Terms and Conditions in this Annexure:

(a) The Vendor-cum-Promoter / Association of Owners may vary these terms and conditions by adding, altering or deleting any of them.

(b) The Vendor-cum-Promoter / Association of Owners may charge the Allottee a penalty if the Allottee violates any of the terms and conditions mentioned herein as per its policies relating to the use of the Allottee Car Park.

IN WITNESS WHEREOF parties hereinabove named have set their respective hands and signed this Agreement for sale at **Bangalore** in the presence of attesting witness, signing as such on the day first above written.

VENDOR-CUM-PROMOTER **By M/s.Goyal Hariyana Associates**	**ALLOTTEE/S** **1.** **2.**
WITNESSES:	
1)	2)